

26STCV14591 26STCV14591

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Case Number: 26STCV14591 Hearing Date: July 30, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 30, 2026

Case Name: Piver, et al. v. Lagresa, et al.

Case No.: 26STCV14591

Matter: Anti-SLAPP Motion

Moving Party: Defendants Oscar A.J. Lagresa, Lucie P.M. Lagresa, and Josephine E.

Lagresa

Responding Party: Plaintiffs Debra Piver and Marcos Najera

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant dispute. On May 7, 2026, Plaintiffs Debra Piver and Marcos Najera filed the operative Complaint for (1) harassment in violation of LAMC § 45.33, et seq., (2) FEHA failure to provide accommodations, (3) FEHA interference, intimidation, and coercion, (4) breach of implied covenant of quiet enjoyment, (5) IIED, (6) violations of the UCL, and (7) declaratory relief.

Plaintiffs allege that Defendants attempted to force Plaintiffs out of their rent-stabilized duplex unit by issuing non-compliant buyout offers without required statutory disclosures and by deliberately cutting off essential housing services, including electrical power, EV charging access, and maintenance, along with other harassing conduct.

Defendants Oscar A.J. Lagresa, Lucie P.M. Lagresa, and Josephine E. Lagresa now assert a Special Motion to Strike the first and sixth causes of action pursuant to CCP § 425.16.

Legal Standard

Code of Civil Procedure section 425.16 sets forth the procedure governing anti-SLAPP motions. In pertinent part, the statute states, “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc. § 425.16(b)(1).) The purpose of the statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant’s constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts employ a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) To invoke the protections of the statute, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (*Ibid.*) From this fact, courts “ ‘presume the purpose of the action was to chill the defendant’s exercise of First Amendment rights. It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.’ ” (*Ibid.*) In determining whether the plaintiff has carried this burden, the trial court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc. § 425.16(b)(2); see *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (“*Soukup*”).)

Protected Activity

To meet their burden for the first prong of the anti-SLAPP analysis, Defendants must demonstrate that Plaintiffs’ causes of action from protected activity. That is, it must be that “defendant’s conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e) . . . ‘the act underlying the plaintiff’s cause’ or ‘the act which forms the basis for the plaintiff’s cause of action’ must itself have been an act in furtherance of the right of petition or free speech.’ ” (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 63 (internal citations omitted).)

An “ ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc. § 425.16(e).)

Defendants collapse the anti-SLAPP analysis into one prong by arguing the Motion should be entirely granted because the harassment claim is subject to the litigation privilege. They argue that the litigation privilege applies because sending buyout

offers in hopes of obviating an unlawful detainer action is pre-litigation, settlement conduct. Presumably then, Defendants contend the first and sixth causes of action arise from protected activity under CCP § 425.16(e)(2).

Code Civ. Proc. § 425.16(e)(2) relates to statements made in connection with an issue under consideration by a government body. (See *City of Costa Mesa v. D'Alessio Investments LLC* (2013) 214 Cal.App.4th 358, 372-273.) The challenged statements need not be made before an official body, but must “relate[] to the substantive issues in the [underlying] litigation and [must be] directed to persons having some interest in the litigation.” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) The defendant need not separately demonstrate that a statement or writing concerned an issue of public significance if it was made in connection with an issue under consideration or review by an official proceeding or body. (*Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1113.)

Courts look to the litigation privilege “as an aid” in determining whether a given communication falls within the ambit of Code Civ. Proc. § 425.16(e)(2). (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323.)

The litigation privilege set forth in Civ. Code § 47 generally applies “to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Statements made in anticipation of litigation are subject to the litigation privilege. (*Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1115.) The “principle purpose of [the litigation privilege] is to afford litigants . . . the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions.” (*Id.* at p. 213.) “The litigation privilege is . . . relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323.)

“In California, the courts have held a prelitigation statement is protected by the litigation privilege of section 47, subdivision (b) when the statement is made in connection with a proposed litigation that is contemplated in good faith and under serious consideration. In other words, the prelitigation statements must have some connection or logical relation to the action” (*A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1128.)

It is not apparent to the Court that the buyout offers in April-May 2024 were made with respect to litigation that was seriously and in good faith considered. The Complaint does allege that “DEFENDANTS further stated that if PLAINTIFFS did not accept a buyout, they would remove PLAINTIFFS anyway and described potential legal processes that could be used to force Plaintiffs to vacate.” But after these offers were refused, the allegations are not that a UD was filed. Instead, it is alleged that Defendants engaged in a campaign of misconduct, including interference with Plaintiffs’ utilities and rent payments, as well as reduction of management services. The evidence shows Defendants did not actually file an unlawful detainer (“UD”) action until nearly a year and a half later in November 2025. It is not apparent that the buyout offers were made in anticipation of a seriously considered UD; rather, at least for the purposes of this Motion, it appears the offer, made without the necessary disclosures, was “part of a deliberate effort to pressure Plaintiffs to surrender their tenancy rights without the protections afforded to rent-stabilized tenants under Los Angeles law.”

Furthermore, even setting the litigation privilege aside, because protected activity is broader, the actionable wrong alleged in the First and Sixth Causes of Action is not that Defendants expressed a position on eviction, but that Defendants initiated and pursued a buyout offer without issuing the mandatory RSO Disclosure Notice required by LAMC section 151.31. The failure to provide statutorily mandated disclosures in a landlord-tenant transaction is non-petitioning operational/regulatory conduct. Per LAMC § 151.33, “tenant harassment includes offering payments to a tenant to vacate their unit without providing written notice to the tenant of their rights under Section 151.31 of this Code (Tenant Buyout Notification Program), using the form prescribed by the Department. However, this shall not prohibit offers made in pending unlawful detainer actions.” (emphasis added.) There was no pending UD when the offer was made without disclosures.

As an additional matter, Defendants’ moving papers seek for the Court to strike the entirety of the first and sixth causes of action, but Defendants fail to recognize that these causes of action are based on much more than the buyout offer: interrupting/transferring electrical services; terminating long-standing EV charging access; reduction of pest control, maintenance, and landscaping services; physical accessibility burdens (installing a gate); interference with/refusal of rent payments; and failure/refusal to grant a reasonable disability accommodation under FEHA. These acts—like interrupting

utilities—are not protected, communicative conduct. That is, the first and sixth causes of action are not entirely premised on protected activity. By failing to parse the first and sixth causes of action between protected and non-protected activity, Defendants failed to carry their burden to show that the first and sixth causes of action are adequately premised in any part on protected activity.

Therefore, the Motion is denied.

Moving party to give notice.